IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation*

CA(CAA)/9(CHE)2022

3M ELECTRO & COMMUNICATION INDIA PRIVATE LIMITED
CIN NO: U31909PY1989PTC001156
No.95,(Plot Nos.95-97), Sanniyasikuppam,
Udhaya Nagar, Thirubhuvanai Main Road,
Thirubhuvanai Post,
Puducherry – 605 107

... Applicant / Transferor Company

3M INDIA LIMITED
CIN NO: L31300KA1987PLC013543
Plot Nos. 48-51, Electronics City,
Hosur Road,
Bengaluru-560 100

... Transferee Company

Order Pronounced on ***25th May 2022***

CORAM

R. SUCHARITHA, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): Pawan Jhabakh, Advocate

ORDER

Per: **R. SUCHARITHA, MEMBER (JUDICIAL)**

This is an Application filed by the Applicant Company, namely 3M Electro & Communication India Private Limited (hereinafter referred to as the **" Applicant/Transferor Company"**), filed under sections 230 to 232 of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the NCLT, Rules, 2016, in relation to the Scheme of Arrangement (Amalgamation) between 3M Electro & Communication India Private Limited with 3M India Limited (hereinafter referred to as the "**Scheme**" (annexed as '**Annexure G**' in the accompanying Typed Set of Documents), by virtue of which the entire business Undertaking of the Transferor Company shall be transferred and vested into the company known as 3M India Limited (hereinafter referred to as the "**Transferee Company**" in the said Scheme), as a going concern.

2. It is seen that the Transferee Company in the present Scheme, has its registered office in Bengaluru and the Learned Counsel for the Petitioner submitted that they have accordingly approached the National Company Law Tribunal, Bench at Bengaluru, simultaneously for the approval of the present Scheme.

3. The above Applicant Company herein, through this Company Application, has prayed for the following reliefs:

a. The Applicant/Transferor Company, has prayed for the dispensation of the meetings of their Equity Shareholders and Unsecured Creditors;

b. It is also prayed that Notices may be directed to be issued to the Registrar of Companies, Chennai, The Regional Director, Ministry of Corporate Affairs, the Office of the Official Liquidator and the relevant Income Tax Department;

4. From the certificate of incorporation filed, it is evident that the Transferor Company is a Private limited company incorporated under the provisions of Companies Act, 1956 on 27.07.1989. The Authorized Share Capital of the Applicant Company is Rs. 50,00,000/-, consisting of 5,00,000 Equity Shares of Rs. 10/- each. The issued subscribed and paid-up capital of the Applicant Company is Rs. 50,00,000/-, consisting of 5,00,000 Equity Shares of Rs. 10/- each.

5. The Authorized, issued, Subscribed and paid up share capital of the Applicant Company is as follows:

Particular	October 31,2021
Authorized equity Share Capital	**Amount in Rs.**
1,12,65,070 equity shares of Rs.10/- each	11,26,50,700
Issued, Subscribed and Paid Up equity Share Capital	
1,12,65,070 equity shares of Rs.10/- each	11,26,50,700

6. Affidavit in support of the above application was sworn for and behalf of the Applicant /Transferor Company by Mr. Rajiv Gupta in the capacity of Authorised Signatory for the Transferor Company along with the application and it is also represented that the Registered office of the Transferor Company is situated at 95, (Plot Nos.95-97), Sanniyasikuppam, Udhaya Nagar,Thirubhuvanai Main Road, Thirubhuvanai Post, Puducherry – 605 107 within the territorial jurisdiction of the Bench of this Tribunal and falling within the purview of Registrar of Companies, Chennai.

7. **3M ELECTRO & COMMUNICATION INDIA PRIVATE LIMITED TRANSFEROR COMPANY – CA(CAA)/9(CHE)/2022**

(i) There are 2 (Two) Equity Shareholders and list of shareholders to this effect is placed at page No.401 and the Consent Affidavits given by both the Equity Shareholders is annexed at Page Nos 402 to 406 of the typed set filed along with the Application and sought dispensation with holding and conducting of meeting.

(ii) There are NIL Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 713 of the typed set filed along with the Application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

(iii) There are 119 (One Hundred and Nineteen) Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 407 to 410 of the typed set filed with the application and consent by way of Affidavits given by 66 (Sixty Six) unsecured Creditors Constituting 90.60% the total value of credit have been obtained are placed at pages 411 to 712 of the typed set filed with the application and sought for dispensation with holding of meeting.

8. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

9. The Applicant Company has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2021 and Provisional Financial Statements for the period ended on 30.06.2021.

10. The Board of Directors of the Applicant Companies vide meeting held on 17th September 2021 had unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the applicant companies.

11. The Appointed date as specified in the Scheme is 01.04.2021.

12. The Statutory Auditors of the Transferor Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The said Certificates of the Statutory Auditor in this regard is placed at "Annexure K" (Page Nos. 714-717) in the accompanying typed set of Documents.

13. Taking into consideration the application filed by the Applicant Company and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions: -

A. IN RELATION TO THE TRANSFEROR COMPANY: CA(CAA)/9(CHE)/2022

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferor Company that there are 2 Equity Shareholders in the Company whose consents by

way of Affidavits have been obtained from both and are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

(ii) **With respect to Secured Creditors:**

Since it is represented by the Transferor Company that there are NIL Secured Creditors in the Company, hence the necessity of Convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Transferor Company that there are 119 Unsecured Creditors in the Company whose consents by way of Affidavits have been obtained from sixty six unsecured Creditors Constituting 90.60% of the total value of credit are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

14. The Applicant Companies shall submit the Company Petition(s) within 14 days from the date of receipt of this order. Accordingly, the Application stands **allowed**.

-Sd-
SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-
R. SUCHARITHA
MEMBER (JUDICIAL)

Sriram Ananth.V